BY ORDER OF THE
SECRETARY OF THE AIR FORCE

AIR FORCE POLICY DIRECTIVE 40-6

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Medical

EDUCATIONAL AND DEVELOPMENTAL INTERVENTION SERVICES

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This publication implements Department of Defense Instruction 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents,* June 17, 2015, and Department of Defense Manual 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents,* June 17, 2015. This will ensure that the highest standards of practice and care are applied to all aspects of intervention for eligible children with disabilities and their families. It incorporates Public Law, Department of Defense issuances, and Air Force publications that provide overarching policy and guidance for the management and safeguarding of health care information. The authority to collect and maintain these records is prescribed in Title 10, United States Code, Section 8013, System of Records Notice F044 AF SG U, *Special Needs and Educational and Developmental Intervention Services (EDIS)*. The Health Insurance Portability and Accountability Act Privacy Rule as implemented by Department of Defense 6025.18-R, *DoD Health Information Privacy Regulation*, January 24, 2003, provides overarching policy and guidance for the management, safeguarding, use, and disclosure of individually identifiable health information collected or created. Air Force Instruction 41-200, *Health Insurance Portability and Accountability Act (HIPAA)*, July 25, 2017, identifies and defines the requirements, policies, procedures, and activities necessary for successful HIPAA compliance. Department of Defense Directive 5400.7, *Freedom of Information Act (FOIA) Program*, January 2, 2008, applies to the disclosure of health care information to the public. It applies to Regular Air Force Component members and their families. It also applies to Air National Guard, Reserve Component members, and civilians deemed eligible to receive care in a Military Treatment Facility.

Refer recommended changes and questions about this publication to the Office of Primary Responsibility using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through appropriate functional's chain of command. Ensure that all records created as a result of the processes prescribed in this publication are maintained in accordance with Air Force Manual 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Disposition Schedule in the Air Force Records Information Management System.

SUMMARY OF CHANGES

Recent changes to these publications include information on Educational and Developmental Intervention Services Practice Procedures.

1. Overview. Department of Defense Instruction 1342.12 and Department of Defense Manual 1342.12 mandate that the military services ensure children with disabilities receive services. Educational and Developmental Intervention Services ensures the provision of services that are needed by eligible beneficiaries to benefit from a Free Appropriate Public Education, where education is provided directly by the Department of Defense. The Department of Defense Dependent Schools, the Department of Defense Domestic Dependents Elementary and Secondary Schools, and the military services work cooperatively to provide special education and Related Services to school-age children with disabilities. Early Intervention Services are provided to eligible infants and toddlers with disabilities and their families through Educational and Developmental Intervention Services. Eligibility is determined for Related Services and Early Intervention Services for the children of military and federal employees in accordance with Department of Defense Instruction 1342.26, *Eligibility Requirements for Minor Dependents to Attend Department of Defense Domestic Dependent Elementary and Secondary Schools (DDESS),* March 4, 1997, and Department of Defense Education Activity Regulation 1342.13, *Eligibility Requirements for Education of Elementary and Secondary School-age Dependents in Overseas Areas,* Change 2, February 29, 2008. Geographical Areas of Responsibility for each Service's provision of Educational and Developmental Intervention Services is determined by Health Affairs.

2. Policy. It is Air Force policy that:

2.1. Air Force Educational and Developmental Intervention Services clinics will provide evaluations and on-going services as set forth in Department of Defense Instruction 1342.12, Department of Defense Manual 1342.12, this Air Force Policy Directive, and implementing Air Force instructions/manuals.

2.2. Military Treatment Facilities with designated Educational and Developmental Intervention Services clinics will provide Educational and Developmental Intervention Services to eligible beneficiaries. Air Force Educational and Developmental Intervention Services clinics include the following services:

2.2.1. Early Intervention Services are provided to infants and toddlers (from birth up to 3 years of age) with disabilities and their families as specified on an Individualized Family Service Plan.

2.2.2. Related Services: Children, ages 3 through 21, enrolled in Department of Defense Dependent Schools, will receive Related Services from Educational and Developmental Intervention Services as specified on an Individualized Education Program.

3. Responsibilities. This directive establishes the following responsibilities and authorities:

3.1. The Assistant Secretary (Manpower & Reserve Affairs) (SAF/MR) provides oversight of Educational and Developmental Intervention Services policy and guidance.

3.2. The Air Force Surgeon General (AF/SG) ensures the development of policies and detailed guidance, and may further direct/delegate authority to fully implement Department of Defense Instruction 1342.12, Department of Defense Manual 1342.12 and the Air Force Educational and Developmental Intervention Services policy above.

4. Applicability. This policy applies to all military and civilian beneficiaries who are entitled to receive care in a Military Treatment Facility, as well as eligible Department of Defense family members entitled to Early Intervention Services, Related Services, and special education services in accordance with Department of Defense Instruction 1342.12 and Department of Defense Manual 1342.12.

HEATHER A. WILSON
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDI 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents,* June 17, 2015

DoDM 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents,* June 17, 2015

Title 10, United States Code, Section 8013, System of Records Notice F044 AF SG U, *Special Needs and Educational and Developmental Intervention Services (EDIS)*

DoD 6025.18-R, *DoD Health Information Privacy Regulation*, January 24, 2003

AFI 41-200, *Health Insurance Portability and Accountability Act (HIPAA)*, July 25, 2017

DoDD 5400.7, *DoD Freedom of Information Act (FOIA) Program,* January 2, 2008

AFMAN 33-363, *Management of Records,* March 01, 2008

DoDI 1342.26, *Eligibility Requirements for Minor Dependents to Attend Department of Defense Domestic Dependent Elementary and Secondary Schools (DDESS),* March 4, 1997

DoDEA Regulation 1342.13, *Eligibility Requirements for Education of Elementary and Secondary School age Dependents in Overseas Areas,* change 2, February 29, 2008

Prescribed Forms

None.

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Terms

Domestic Dependent Elementary and Secondary Schools—For the purposes of this policy directive, schools (grades K-12) operated by Department of Defense within the continental United States.

Department of Defense Dependent Schools—For the purposes of this policy directive, schools (grades K – 12) operated by the Department of Defense outside the continental United States, to include Alaska, Hawaii, and U.S. territories.

Developmental Delay—Significant discrepancies in the actual functioning of a child, ages birth through five, when compared to the functioning of a nondisabled, same chronologically aged child.

Disability—A short-term or permanent problem, a condition, or a condition having a high probability for developmental delay that impacts a child's learning or accomplishing in the same ways as most other students.

Early Intervention Services—Services provided by the Early Intervention Services component of Educational and Developmental Intervention Services may include: early childhood special education, occupational therapy, physical therapy, speech-language/communication therapy, audiology, nursing, social work, and transportation to services where natural environments are not conducive to service provision. Family training, counseling, early identification, screening, assessment and service coordination activities across all specialties are emphasized. Assistive technology devices and services are included. Other medical services that may be provided to support evaluation and consultation functions include developmental pediatrics, child psychology, and child psychiatry. To the greatest extent possible, Early Intervention Services are provided to the child and the family in natural environments.

Educational and Developmental Intervention Services—The name for separate programs operated by the military services that provide Early Intervention Services to infants and toddlers (birth up to 3 years of age) and Related Services to children (3 years of age to 21 years of age).

High Probability for Developmental Delay—A child, ages birth to three, with a diagnosed mental or physical condition, that places the child at substantial risk of having a developmental delay without the aid of Early Intervention Services.

Individualized Education Program—The Individualized Education Program is a document developed by the Case Study Committee and contains input from parents, teachers, and Related Services providers. The Individualized Education Program defines specially designed instruction for a student with a disability. Intensity, frequency, location, and methodology of service delivery are specified.

Individualized Family Service Plan—The Individualized Family Service Plan is a multidisciplinary-written document that ensures each eligible child and family has a plan for Early Intervention Services to meet their unique needs through a collaborative partnership between the family and providers. Areas to be addressed include cognitive, physical, social and emotional, communication, and adaptive development with particular focus on each family's goals and social context.

Related Services—Supportive services needed to assist a child, age 3 through 21 years, to benefit from special education. These services may include occupational therapy, physical therapy, audiology and speech-language/communication therapy, orientation and mobility services, recreation including therapeutic recreation, school health services, school psychology, school social work services, parent counseling and parent training. If the need for additional services is determined, Educational and Developmental Intervention Services providers will refer to Military Treatment Facility specialties. Early identification of disabilities, service coordination across providers involving families, and support of educational achievement are emphasized. To the maximum extent possible, Related Services are provided in the least restrictive environment.